IN THE NATIONAL COMPANY LAW TRIBUNAL
SPECIAL BENCH III, AT NEW DELHI

UNDER SECTIONS 230-232 and other applicable provisions of Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016

CA (CAA)-96(ND)/2022

IN THE MATTER OF SCHEME OF AMALGAMATION OF

LUCIDUES TECH PRIVATE LIMITED
...(Transferor / Applicant Company No. 1)

WITH

SAFE TECHNOLOGY INDIA PRIVATE LIMITED
...(Transferor / Applicant Company No.2)

Order delivered on: 24.11.2022

CORAM:

SH. BACHU VENKAT BALRAM DAS
HON'BLE MEMBER (JUDICIAL)

DR. BINOD KUMAR SINHA
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant: Rishabh Sachdeva along with PCA Abhishek Nahta

ORDER

Per- Dr. Binod Kumar Sinha, Member (Technical)

1. This is a 1st Motion Petition filed by the applicant companies seeking approval of this Tribunal regarding the Scheme of Amalgamation under Sections 230 and 232 of the Companies Act, 2013 read with the Companies (Compromise, Arrangements and Amalgamations) Rules, 2016 in respect of above Transferor Company and Transferee Company.

2. Heard Ld. Counsel appearing for the Applicant Companies and perused the paper book.

It is represented by the Ld. counsel that the registered office of all the Applicant Companies is situated in New Delhi and therefore the subject matter of the said Application falls within the jurisdiction of this Tribunal.

Ld. Counsel has given the brief description of the Transferor and Transferee Companies, as summarized hereunder:

I. **M/S LUCIDUES TECH PRIVATE LIMITED**

(Transferor Company/Applicant Company No. 1)

The company is incorporated under the Companies Act, 1956 and is having its registered office at A-1/20, Basement, Safdurjung Enclave, Delhi-110029 and is having its CIN U72200DL2012PTC317713. The authorized share capital of the company is Rs 3,00,00,000/- and the paid-up share capital is Rs 1,63,45,440/-

As regards, Transferor Company No 1, as on 31.03.2021, the Company has 2 Shareholders and all the Shareholders have given their consent to the Scheme and these consent affidavits are on record (Pages 283-293). There are no Secured Creditors. There is 1 Unsecured Creditor who has given its consent for the present Scheme (Pages 315-321).

II. **M/S SAFE TECHNOLOGY INDIA PRIVATE LIMITED**

(Transferee Company / Applicant Company No. 2)

The company is incorporated under the provisions of the Companies Act, 2013 and having its registered office at A-1/20 Basement, Safdarjung Enclave, Delhi-110029 and bearing CIN U72900DL2017PTC312605. The authorized share capital of the company is Rs 2,00,00,000/- and the paid-up share capital is Rs 1,71,07,260/-.

As regards, Transferee Company, there are 2 Shareholders who have given their consent for the present Scheme which are placed on record (Pages 294-304). As on 31.03.2021, there are no Secured Creditors. There is 1 Unsecured Creditor who has given its consent for the present Scheme, paced on record (Pages 322-328).

3. Ld. Counsel appearing for the Applicant Companies has prayed for dispensation of calling/convening/holding and conducting of meetings of the Shareholders, Secured Creditors and Unsecured Creditors of all the applicant companies.
4. Having heard the submissions made by Ld. Counsel and having perused the records as well as the documents placed on record, we allow the said prayer for the dispensation of the meetings of the Shareholders and also of the Unsecured Creditors of the applicant companies. Since there are no Secured Creditors in all the applicant companies, there is no need for obtaining the consent/NOC and there is no requirement of calling any meeting.

With the above directions, the present petition is **disposed of.**

—Sd—

(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)

—Sd—

(DR. BINOD KUMAR SINHA)
MEMBER (TECHNICAL)